

CHAPTER 57.

An Act to make provision for Meals for Children attending Public Elementary Schools in England and Wales.

[21st December 1906]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

power of local
education au-
thority to aid
school canteen
committees in
the provision of
meals for chil-
dren.

Edw. 7. c. 42.

1. A local education authority under Part III. of the Education Act, 1902, may take such steps as they think fit for the provision of meals for children in attendance at any public elementary school in their area, and for that purpose—

(a) may associate with themselves any committee on which the authority are represented, who will undertake to provide food for those children (in this Act called "school canteen committee"); and

(b) may aid that committee by furnishing such land, buildings, furniture, and apparatus, and such officers and servants as may be necessary for the organization, preparation, and service of such meals;

but, save as herein-after provided, the authority shall not incur any expense in respect of the purchase of food to be supplied in such meals.

recovery of the
cost of meals.

2.—(1) There shall be charged to the parent of every child in respect of every meal furnished to that child under this Act such an amount as may be determined by the local education authority, and, in the event of payment not being made by the parent, it shall be the duty of the authority, unless they are satisfied that the parent is unable by reason of circumstances other than his own default to pay the amount, to require the payment of that amount from that parent, and any such amount may be recovered summarily as a civil debt.

(2) The local education authority shall pay over to the school canteen committee so much of any money paid to them by or recovered from, any parent as may be determined by the authority to represent the cost of the food furnished by the committee to the child of that parent, less a reasonable deduction in respect of the expenses of recovering the same.

power of local
education au-
thority to de-
fray the cost of
meals in certain
cases.

3. Where the local education authority resolve that any of the children attending an elementary school within their area are unable by reason of lack of food to take full advantage of the education provided for them, and have ascertained that funds other than public funds are not available or are insufficient in amount to defray the cost of food furnished in meals under this Act, they may apply to the Board of Education, and the Board may authorise them to spend out of the rates such sum as will meet the cost of the food so furnished, and that food shall

the total amount expended by a local education authority for the purposes of this section in any local financial year shall not exceed the amount which would be produced by a rate of one halfpenny in the pound over the area of the authority, or, where the authority is a county council (other than the London County Council), over the area of the parish or parishes which in the opinion of the council are served by the school.

4. The provision of any meal under this Act to a child and the failure on the part of the parent to pay any amount demanded under this Act in respect of a meal shall not deprive the parent of any franchise, right, or privilege, or subject him to any disability.

Provisions as to disfranchisement.

5.—(1) The powers of a local education authority under this Act shall be deemed to be powers of that authority under the Education Acts, 1870 to 1903, and the provisions of those Acts as to the manner in which the expenses of a local education authority are to be charged and defrayed, and as to borrowing, and as to the manner in which the amount which would be produced by any rate in the pound is to be estimated, shall apply to expenses incurred and money borrowed under this Act, and to the estimate of the produce of any rate in the pound for the purposes of this Act.

Application of Education Acts.

(2) Any expression to which a special meaning is attached in the Education Acts, 1870 to 1903, shall have the same meaning in this Act, except that for the purposes of this Act the expression "child" shall, notwithstanding anything in section forty-eight of the Elementary Education Act, 1876, include any child in attendance at a public elementary school.

39 & 40 Vict. c. 79.

6. No teacher seeking employment or employed in a public elementary school shall be required as part of his duties to supervise or assist, or to abstain from supervising or assisting, in the provision of meals, or in the collection of the cost thereof.

Provision as to teachers.

7. This Act shall not apply to Scotland.

Extent of Act.

8. This Act may be cited as the Education (Provision of Meals) Act, 1906.

Short title.

CHAPTER 58.

An Act to consolidate and amend the Law with respect to Compensation to Workmen for Injuries suffered in the course of their Employment.

[21st December 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows: